

Multiple Choice (10 marks)

1. Which of the following quotations best describes the central thesis of difference feminism?
 - (a) There are fundamental differences between individual women.'
 - (b) Men and women have different conceptions of the feminist project.'
 - (c) Women look to context, whereas men appeal to neutral, abstract notions of justice.'
 - (d) Men are unable to comprehend their differences from women.'
2. What does the principle 'pacta sunt servanda' mean?
 - (a) Parties to a treaty should be cognizant of its terms and not misinterpret them
 - (b) Parties to a treaty should safeguard the object and purpose of the treaty
 - (c) Parties to a treaty should adhere to its terms in good faith
 - (d) Parties to a treaty should not violate the most important provisions of the treaty
3. Cicero's conception of natural law is 'based on the idea that 'true law is right reason in agreement with Nature.' Reason is a key element because:
 - (a) It is a sin for humans not to apply reason.
 - (b) The principles of natural law are discoverable by reason.
 - (c) Natural law does not apply without good reason.
 - (d) The law of nature is the basis of all positive law.
4. Which of the following articles are not qualified rights?
 - (a) Article 3
 - (b) Article 8
 - (c) Article 9
 - (d) Article 11
5. Should treaties assume a particular form?
 - (a) Treaties should always be designated as such and assume a particular form
 - (b) Treaties should always assume a particular form, no matter how they are designated
 - (c) Treaties do not have to assume a particular form or designated as such
 - (d) Treaties have to be designated as such, no matter what form they assume

True / False (10 marks)

Answer True or False

6. True or False: Dworkin argues that morality plays no role in the concept of law, emphasizing law's separation from ethical considerations.
7. True or False: General Assembly Resolutions are considered formal sources of international law alongside treaties and custom.
8. True or False: Austin is credited with defining jurisprudence as the study of legal principles and their applications in society.
9. True or False: The Critical Legal Studies School argues that legal rules serve to uphold the interests of the powerful and maintain societal inequalities.
10. True or False: The concept suggests that law must always align with moral principles to be valid.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss how Hart's distinction between 'being obliged' and 'having an obligation' contributes to our understanding of legal rules in constitutional law.
12. Discuss the factors that contributed to the revival of natural law in the 20 th century, with a focus on the impact of international human rights recognition post-World War II.

End of Paper